COMMERCIAL LEASE AGREEMENT

Magnolia Market Lofts | Buffalo, NY

Landlord	Magnolia Market Lofts Owner LLC
Tenant	Cardinal Design Studio
Premises	Suite 11110, Magnolia Market Lofts
Lease Date	September 10, 2024
Term	4 years

1. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Magnolia Market Lofts, 4023 Peachtree Avenue, Buffalo, NY 80498. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

2. Term. The term of this Lease shall be 10 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

3. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

4. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

5. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 26 months of Base Rent, to be held without interest. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

6. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

7. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

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8. Alterations. Tenant shall not make any alterations costing more than $290,000 without Landlord's prior written consent, which shall not be unreasonably withheld. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

9. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

10. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

11. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

12. Renewal Option. Tenant shall have 41 option(s) to renew for 5 years each at the then-prevailing market rent upon at least nine months' notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

13. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

14. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Magnolia Market Lofts, 4023 Peachtree Avenue, Buffalo, NY 80498. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

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Capital Project Schedule

Project	Category	Start	Completion	Budget	Spent to Date	Status
Parking lot resurfacing	Site	01/31/24	Q2 2026	$361,000	$252,773	Bidding
Fire alarm panel upgrade	Life Safety	12/17/24	Q2 2025	$572,000	$65,289	Bidding
Roof replacement - Bldg D	Interior	12/20/24	Q3 2027	$535,000	$64,759	In progress
Lobby renovation	Building	08/03/23	Q1 2026	$447,000	$79,138	In progress
Lobby renovation	Building	08/27/24	Q4 2025	$537,000	$119,617	Approved
Pool resurfacing	Energy	05/19/25	Q4 2025	$234,000	$145,397	Approved
ADA compliance	Site	11/22/24	Q1 2026	$232,000	$114,713	Deferred
Fence replacement	Life Safety	02/15/25	Q4 2027	$275,000	$226,542	Complete
Lobby renovation	Interior	09/15/26	Q1 2027	$468,000	$428,611	Approved
Fence replacement	Life Safety	05/17/26	Q3 2026	$108,000	$95,409	Approved
Fence replacement	Life Safety	05/24/26	Q2 2025	$888,000	$397,752	Bidding
Exterior paint	Site	01/03/24	Q1 2025	$139,000	$133,693	Complete
Parking lot resurfacing	Interior	10/27/25	Q2 2027	$280,000	$87,884	In progress
ADA compliance	Interior	05/31/26	Q3 2025	$60,000	$32,642	Bidding
HVAC replacement	Site	02/23/26	Q4 2026	$797,000	$360,049	Bidding
Parking lot resurfacing	Building	03/27/26	Q1 2027	$755,000	$601,469	Approved
Fire alarm panel upgrade	Energy	08/26/25	Q3 2026	$244,000	$223,395	In progress
ADA compliance	Life Safety	11/11/26	Q4 2026	$692,000	$504,409	Complete
Fence replacement	Interior	11/18/26	Q3 2025	$759,000	$518,132	Deferred
Fire alarm panel upgrade	Energy	03/14/25	Q2 2025	$532,000	$265,006	Bidding
Unit interior upgrades	Life Safety	03/19/26	Q2 2027	$50,000	$11,366	Complete
Amenity renovation	Site	01/16/25	Q2 2026	$861,000	$32,782	In progress
Storefront glazing	Interior	03/07/26	Q4 2027	$465,000	$197,699	Complete
Fire alarm panel upgrade	Building	01/27/26	Q2 2025	$22,000	$21,024	Approved
Lobby renovation	Building	04/06/25	Q4 2025	$663,000	$415,917	Complete
Exterior paint	Building	11/07/24	Q2 2027	$614,000	$345,877	Deferred
Exterior paint	Energy	01/03/26	Q3 2026	$815,000	$291,280	Bidding
Sewer line repair	Life Safety	12/05/24	Q1 2027	$64,000	$59,894	Complete
Signage / monument	Energy	10/22/23	Q1 2025	$18,000	$11,303	Approved
Amenity renovation	Site	08/07/25	Q1 2025	$79,000	$26,373	In progress
LED lighting retrofit	Life Safety	10/06/24	Q1 2025	$14,000	$13,934	Complete
LED lighting retrofit	Building	03/05/26	Q4 2025	$274,000	$136,218	In progress
Parking lot resurfacing	Site	08/13/26	Q4 2026	$266,000	$266,863	In progress
Lobby renovation	Interior	11/02/25	Q2 2026	$810,000	$668,767	Complete
Fence replacement	Energy	07/05/25	Q4 2027	$247,000	$27,096	In progress
Lobby renovation	Life Safety	06/09/25	Q4 2025	$562,000	$85,950	Approved
ADA compliance	Life Safety	11/12/25	Q2 2025	$767,000	$761,792	Complete
Storefront glazing	Site	03/07/26	Q3 2025	$533,000	$242,593	Approved
Parking lot resurfacing	Interior	12/31/26	Q1 2025	$45,000	$40,188	Deferred
Exterior paint	Energy	02/06/26	Q4 2025	$640,000	$497,384	Approved
Unit interior upgrades	Life Safety	07/26/26	Q4 2025	$395,000	$122,588	Approved
Parking lot resurfacing	Life Safety	03/26/26	Q1 2025	$315,000	$113,912	Bidding
Roof replacement - Bldg A	Energy	11/27/25	Q4 2025	$608,000	$48,095	Complete

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15. Term. The term of this Lease shall be 12 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

16. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

17. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

18. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 31 months of Base Rent, to be held without interest. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

19. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

20. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

21. Alterations. Tenant shall not make any alterations costing more than $26,000 without Landlord's prior written consent, which shall not be unreasonably withheld. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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Capital Project Schedule

Project	Category	Start	Completion	Budget	Spent to Date	Status
Storefront glazing	Energy	10/30/23	Q2 2025	$268,000	$265,283	Deferred
Door hardware	Energy	05/13/26	Q4 2025	$420,000	$270,691	Complete
Door hardware	Energy	08/12/26	Q4 2026	$121,000	$103,071	Bidding
Landscape / irrigation	Site	01/04/26	Q3 2026	$17,000	$9,667	Approved
Pool resurfacing	Site	05/31/24	Q1 2027	$142,000	$286	Approved
Unit interior upgrades	Life Safety	09/12/23	Q1 2025	$222,000	$215,109	Approved
Lobby renovation	Site	07/09/24	Q4 2025	$891,000	$664,390	In progress
Lobby renovation	Site	10/18/25	Q2 2027	$79,000	$67,836	In progress
Lobby renovation	Interior	08/17/24	Q4 2026	$820,000	$435,214	Bidding
Lobby renovation	Energy	12/17/23	Q1 2027	$243,000	$205,758	In progress
Elevator modernization	Site	09/11/24	Q4 2027	$567,000	$283,117	Complete
Storefront glazing	Energy	12/23/23	Q4 2025	$590,000	$86,813	In progress
Signage / monument	Interior	04/12/25	Q4 2027	$824,000	$501,576	In progress
Fence replacement	Site	01/03/23	Q3 2027	$253,000	$174,788	Deferred
Lobby renovation	Interior	11/21/24	Q4 2025	$551,000	$162,776	In progress
Elevator modernization	Building	08/26/26	Q4 2026	$689,000	$541,921	In progress
Exterior paint	Interior	12/02/26	Q3 2027	$147,000	$54,272	Deferred
Fire alarm panel upgrade	Energy	06/12/26	Q3 2025	$615,000	$531,876	Bidding
Elevator modernization	Interior	03/02/24	Q1 2026	$560,000	$245,206	Deferred
Pool resurfacing	Site	09/05/26	Q3 2027	$411,000	$113,495	Complete
Pool resurfacing	Energy	03/26/24	Q3 2025	$290,000	$131,487	Bidding
LED lighting retrofit	Energy	04/21/24	Q4 2027	$494,000	$288,552	In progress
Sewer line repair	Interior	09/22/24	Q1 2026	$54,000	$34,168	Bidding
Sewer line repair	Energy	05/27/23	Q3 2026	$284,000	$261,883	Deferred
Amenity renovation	Energy	09/09/24	Q1 2026	$579,000	$200,536	Approved
Roof replacement - Bldg A	Energy	07/27/24	Q4 2027	$287,000	$62,830	In progress
Sewer line repair	Life Safety	07/06/23	Q4 2027	$245,000	$232,787	Complete
Door hardware	Life Safety	04/01/25	Q4 2026	$458,000	$120,884	Approved
Landscape / irrigation	Building	07/11/23	Q1 2026	$186,000	$16,052	Bidding
LED lighting retrofit	Interior	04/03/23	Q1 2026	$344,000	$59,334	In progress
Security camera upgrade	Life Safety	08/05/26	Q1 2027	$493,000	$371,286	Bidding
Lobby renovation	Interior	12/16/23	Q1 2025	$144,000	$117,665	Bidding
Security camera upgrade	Building	08/09/24	Q1 2025	$287,000	$198,138	In progress
Signage / monument	Life Safety	02/16/23	Q3 2026	$639,000	$162,098	Complete
Amenity renovation	Energy	01/21/25	Q1 2025	$780,000	$391,693	In progress
Landscape / irrigation	Life Safety	10/11/25	Q3 2027	$244,000	$244,684	Approved
Roof replacement - Bldg C	Site	12/03/26	Q4 2026	$190,000	$98,946	Approved
Amenity renovation	Life Safety	04/03/26	Q3 2025	$689,000	$244,154	In progress
LED lighting retrofit	Energy	11/12/24	Q3 2027	$786,000	$564,495	Deferred
Fire alarm panel upgrade	Life Safety	09/14/23	Q4 2025	$778,000	$765,701	In progress
Lobby renovation	Life Safety	01/28/25	Q1 2026	$338,000	$319,623	Bidding

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22. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

23. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

24. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

25. Renewal Option. Tenant shall have 2 option(s) to renew for 8 years each at the then-prevailing market rent upon at least nine months' notice. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

26. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

27. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Magnolia Market Lofts, 4023 Peachtree Avenue, Buffalo, NY 80498. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

28. Term. The term of this Lease shall be 4 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

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Capital Project Schedule

Project	Category	Start	Completion	Budget	Spent to Date	Status
Parking lot resurfacing	Site	09/08/24	Q3 2025	$252,000	$141,986	In progress
Fence replacement	Site	11/29/23	Q4 2026	$219,000	$139,094	Deferred
Roof replacement - Bldg C	Life Safety	08/08/23	Q2 2027	$77,000	$75,245	Complete
ADA compliance	Energy	08/20/26	Q2 2027	$650,000	$71,981	In progress
Parking lot resurfacing	Energy	03/25/23	Q3 2025	$268,000	$93,918	In progress
Security camera upgrade	Site	03/20/24	Q1 2025	$799,000	$39,649	Bidding
HVAC replacement	Life Safety	08/12/26	Q2 2026	$151,000	$128,591	Deferred
Elevator modernization	Energy	03/09/26	Q3 2026	$529,000	$232,670	Deferred
Security camera upgrade	Site	12/25/26	Q4 2026	$62,000	$23,617	Deferred
HVAC replacement	Site	06/01/26	Q4 2025	$755,000	$508,322	Deferred
LED lighting retrofit	Energy	06/28/25	Q1 2027	$225,000	$118,504	Deferred
Amenity renovation	Energy	08/31/25	Q3 2025	$636,000	$587,542	Approved
Landscape / irrigation	Interior	09/01/24	Q2 2027	$388,000	$193,692	In progress
Signage / monument	Life Safety	03/15/26	Q2 2025	$246,000	$134,876	In progress
Roof replacement - Bldg B	Site	07/19/23	Q1 2026	$327,000	$14,955	Complete
Amenity renovation	Interior	04/22/25	Q2 2025	$207,000	$94,082	Deferred
Pool resurfacing	Interior	08/12/24	Q2 2025	$16,000	$11,992	Approved
Security camera upgrade	Building	12/06/26	Q3 2025	$136,000	$33,354	In progress
HVAC replacement	Life Safety	03/23/23	Q2 2025	$78,000	$1,962	Complete
Lobby renovation	Energy	09/23/23	Q2 2025	$266,000	$24,475	Bidding
Fence replacement	Interior	06/09/26	Q2 2025	$825,000	$690,980	In progress
Storefront glazing	Interior	10/14/23	Q3 2025	$385,000	$397,007	In progress
Pool resurfacing	Site	06/14/26	Q3 2026	$479,000	$329,805	Approved
Lobby renovation	Life Safety	03/26/23	Q3 2026	$461,000	$289,533	Complete
Parking lot resurfacing	Life Safety	03/05/23	Q2 2027	$521,000	$476,085	In progress
Roof replacement - Bldg B	Site	06/03/23	Q1 2027	$876,000	$623,249	Complete
Fire alarm panel upgrade	Building	02/09/25	Q1 2025	$756,000	$450,013	Deferred
Pool resurfacing	Life Safety	08/26/23	Q4 2027	$97,000	$10,575	Complete
Unit interior upgrades	Interior	10/31/24	Q4 2025	$295,000	$69,342	Approved
Parking lot resurfacing	Life Safety	11/16/23	Q2 2026	$887,000	$599,577	Deferred
Landscape / irrigation	Site	11/02/23	Q3 2025	$699,000	$616,167	Complete
Fire alarm panel upgrade	Life Safety	10/13/23	Q4 2027	$569,000	$344,695	Bidding
Parking lot resurfacing	Life Safety	08/02/24	Q1 2025	$750,000	$52,333	In progress
Sewer line repair	Site	08/13/23	Q1 2025	$64,000	$62,473	Approved
Fire alarm panel upgrade	Energy	06/03/26	Q4 2025	$683,000	$552,303	Approved
ADA compliance	Life Safety	07/24/25	Q1 2027	$810,000	$689,424	Complete
HVAC replacement	Building	09/20/25	Q2 2026	$439,000	$128,374	In progress
Security camera upgrade	Site	12/18/25	Q2 2026	$183,000	$154,598	In progress
Landscape / irrigation	Energy	05/27/26	Q2 2027	$486,000	$276,046	In progress
HVAC replacement	Building	03/02/24	Q4 2026	$430,000	$283,261	Deferred

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29. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

30. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

31. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 24 months of Base Rent, to be held without interest. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

32. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

33. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

34. Alterations. Tenant shall not make any alterations costing more than $274,000 without Landlord's prior written consent, which shall not be unreasonably withheld. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

35. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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Capital Project Schedule

Project	Category	Start	Completion	Budget	Spent to Date	Status
Sewer line repair	Building	10/07/25	Q3 2025	$135,000	$23,030	Bidding
Exterior paint	Energy	11/16/24	Q4 2027	$546,000	$212,795	Approved
Pool resurfacing	Interior	06/24/24	Q3 2025	$631,000	$514,909	Complete
Unit interior upgrades	Energy	12/01/23	Q3 2025	$632,000	$441,871	Deferred
Lobby renovation	Site	08/22/25	Q4 2025	$29,000	$21,470	Approved
Pool resurfacing	Site	07/17/25	Q1 2025	$334,000	$222,733	Deferred
Fence replacement	Interior	10/12/26	Q4 2025	$304,000	$245,324	Complete
Landscape / irrigation	Interior	10/01/26	Q2 2026	$78,000	$5,281	In progress
Unit interior upgrades	Interior	11/28/26	Q1 2025	$49,000	$48,274	Bidding
Storefront glazing	Building	09/14/23	Q2 2027	$279,000	$191,503	Deferred
Storefront glazing	Building	02/19/24	Q2 2027	$633,000	$591,068	Approved
Exterior paint	Interior	12/20/23	Q3 2025	$462,000	$462,303	In progress
Pool resurfacing	Site	09/02/24	Q4 2026	$728,000	$623,748	Bidding
Exterior paint	Interior	12/22/26	Q2 2025	$899,000	$130,570	Complete
Lobby renovation	Interior	07/11/26	Q4 2026	$802,000	$167,680	Bidding
Fence replacement	Interior	08/30/26	Q3 2027	$184,000	$143,863	Complete
Amenity renovation	Life Safety	07/31/25	Q1 2025	$721,000	$724,347	Deferred
LED lighting retrofit	Interior	05/08/26	Q3 2025	$111,000	$7,031	Bidding
Water heater replacement	Energy	05/14/24	Q4 2027	$803,000	$196,873	Deferred
Amenity renovation	Interior	03/22/23	Q2 2026	$870,000	$732,014	In progress
Pool resurfacing	Site	12/30/23	Q2 2026	$900,000	$358,327	Approved
Sewer line repair	Building	02/06/26	Q1 2025	$26,000	$24,734	Bidding
Roof replacement - Bldg A	Site	10/27/25	Q1 2026	$801,000	$702,546	Complete
Fence replacement	Life Safety	06/03/24	Q3 2027	$582,000	$102,542	In progress
Roof replacement - Bldg A	Energy	07/26/24	Q1 2026	$435,000	$290,372	In progress
HVAC replacement	Interior	03/01/26	Q1 2025	$826,000	$267,721	Deferred
Door hardware	Site	07/10/23	Q2 2027	$251,000	$230,425	Deferred
Door hardware	Energy	09/10/26	Q3 2027	$672,000	$139,867	Deferred
Exterior paint	Energy	03/20/26	Q4 2025	$50,000	$12,653	Complete
Unit interior upgrades	Energy	07/02/24	Q4 2026	$396,000	$90,923	Deferred
Lobby renovation	Energy	10/17/24	Q1 2026	$142,000	$44,007	Deferred
Elevator modernization	Site	10/22/23	Q1 2026	$22,000	$3,988	Deferred
Pool resurfacing	Energy	02/28/24	Q2 2027	$349,000	$329,217	Bidding
Roof replacement - Bldg B	Building	01/07/23	Q2 2027	$555,000	$265,182	Approved
Exterior paint	Interior	05/06/23	Q4 2025	$734,000	$262,677	Bidding
HVAC replacement	Energy	09/09/23	Q3 2027	$509,000	$131,037	Deferred
Amenity renovation	Energy	10/17/24	Q2 2026	$654,000	$75,821	In progress
Unit interior upgrades	Site	12/29/26	Q4 2027	$776,000	$589,858	Deferred
Parking lot resurfacing	Energy	09/06/24	Q1 2026	$878,000	$20,567	Approved
Elevator modernization	Energy	09/09/23	Q3 2026	$287,000	$287,331	Deferred
Pool resurfacing	Site	03/22/26	Q3 2025	$408,000	$405,419	Approved

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36. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

37. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

38. Renewal Option. Tenant shall have 14 option(s) to renew for 7 years each at the then-prevailing market rent upon at least nine months' notice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

39. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

40. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Magnolia Market Lofts, 4023 Peachtree Avenue, Buffalo, NY 80498. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

41. Term. The term of this Lease shall be 7 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

42. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

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Capital Project Schedule

Project	Category	Start	Completion	Budget	Spent to Date	Status
Water heater replacement	Life Safety	12/15/26	Q3 2027	$873,000	$895,122	Bidding
Parking lot resurfacing	Building	08/29/26	Q3 2027	$504,000	$126,268	Bidding
Unit interior upgrades	Life Safety	09/28/26	Q2 2026	$376,000	$362,419	In progress
Roof replacement - Bldg A	Energy	02/03/24	Q4 2026	$606,000	$87,635	Complete
Amenity renovation	Life Safety	01/08/23	Q3 2025	$848,000	$615,136	Approved
Storefront glazing	Energy	10/24/24	Q2 2025	$242,000	$69,975	Complete
Unit interior upgrades	Life Safety	03/13/23	Q4 2026	$503,000	$146,978	Bidding
Amenity renovation	Building	07/09/23	Q2 2026	$613,000	$249,612	In progress
Pool resurfacing	Building	08/30/24	Q1 2025	$437,000	$250,379	Bidding
Pool resurfacing	Site	04/24/26	Q2 2025	$505,000	$490,978	Deferred
Door hardware	Building	09/14/23	Q3 2025	$657,000	$115,487	Bidding
Landscape / irrigation	Life Safety	06/26/26	Q3 2027	$494,000	$260,814	Deferred
Unit interior upgrades	Building	08/27/26	Q3 2025	$493,000	$403,333	Approved
Sewer line repair	Energy	06/20/23	Q3 2026	$150,000	$84,159	Approved
Amenity renovation	Energy	07/22/26	Q4 2026	$305,000	$259,608	Complete
Landscape / irrigation	Site	07/13/24	Q1 2027	$411,000	$131,566	Deferred
Fence replacement	Energy	01/19/26	Q4 2027	$436,000	$157,183	In progress
Security camera upgrade	Building	08/20/26	Q1 2026	$512,000	$95,030	Complete
Unit interior upgrades	Interior	08/08/24	Q3 2026	$151,000	$150,206	Bidding
HVAC replacement	Life Safety	08/30/24	Q2 2025	$662,000	$581,073	Deferred
Lobby renovation	Energy	08/29/26	Q3 2027	$372,000	$4,421	Complete
Signage / monument	Building	07/18/23	Q2 2025	$402,000	$345,472	Complete
Lobby renovation	Energy	11/24/23	Q2 2027	$556,000	$442,885	Bidding
Parking lot resurfacing	Interior	06/16/25	Q4 2026	$638,000	$310,625	Deferred
Unit interior upgrades	Energy	02/26/23	Q4 2026	$739,000	$733,367	In progress
Signage / monument	Building	11/30/23	Q1 2025	$196,000	$119,337	Deferred
LED lighting retrofit	Building	02/27/25	Q4 2025	$129,000	$99,530	Approved
Sewer line repair	Interior	08/28/23	Q2 2027	$865,000	$529,207	Bidding
Unit interior upgrades	Interior	03/04/25	Q3 2027	$188,000	$33,383	Complete
Amenity renovation	Building	12/21/26	Q2 2026	$84,000	$3,207	Approved
HVAC replacement	Energy	02/01/25	Q1 2027	$423,000	$207,877	Bidding
Storefront glazing	Life Safety	01/08/26	Q3 2026	$710,000	$631,242	Bidding
Elevator modernization	Interior	06/05/26	Q2 2027	$186,000	$20,358	In progress
Fence replacement	Life Safety	05/22/25	Q1 2025	$183,000	$122,718	Complete
Fire alarm panel upgrade	Life Safety	03/02/24	Q1 2027	$347,000	$341,028	Complete
Roof replacement - Bldg B	Building	04/03/23	Q3 2026	$601,000	$326,027	Approved
LED lighting retrofit	Life Safety	02/04/23	Q1 2027	$774,000	$205,532	Bidding
Roof replacement - Bldg C	Interior	09/10/26	Q4 2027	$56,000	$43,572	Bidding
Pool resurfacing	Life Safety	08/06/26	Q1 2027	$135,000	$49,196	In progress
Parking lot resurfacing	Building	11/28/26	Q3 2026	$761,000	$665,400	In progress

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43. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

44. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 15 months of Base Rent, to be held without interest. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

45. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

46. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

47. Alterations. Tenant shall not make any alterations costing more than $11,000 without Landlord's prior written consent, which shall not be unreasonably withheld. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

48. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

49. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Magnolia Market Lofts Owner LLC

By: Jerome Vasquez Title: Authorized Signatory Date: 09/10/2024

_____

Cardinal Design Studio

By: Andre Brooks Title: President Date: 09/10/2024

Exhibit A - Property

Magnolia Market Lofts, 4023 Peachtree Avenue, Buffalo, NY 80498. Parcel containing approximately 16.85 acres, together with all improvements thereon.

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